

24VECV06148 24VECV06148

County: los-angeles

Division: Civil Law and Motion

Department: NWI

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24VECV06148

DESTINEY NADEA24VECV06148 DESTINEY NADEAU vs YALE MANAGEMENT SERVICES, INC., et al.U vs YALE MANAGEMENT SERVICES, INC., et al.

Motion for Protective Order

July 20, 2027

Department NW-I

I. BACKGROUND

On December 9, 2024, Plaintiff Destiney Nadeau ("Plaintiff") filed a complaint against Defendants Yale Management Services, Inc., Stanley Yamada, Wayne T. Nelson and Susan A. Nelson as Trustees of the Nelson Trust, Vassar Carriage House, LLC, and Does 1-100, alleging five causes of action: (1) Negligence; (2) Premises Liability; (3) Negligent Maintenance; (4) Breach of Warranty of Habitability; and (5) Negligent Hiring, Retention and Supervision. The complaint arises from a January 4, 2023, incident where Plaintiff claims to have fallen after encountering a defect in the stairs at 7519 Bassar Ave, Apt 103, Canoga Park, California ("Premises").

On May 14, 2025, Plaintiff filed an amendment to the complaint, substituting Doe 4 with Mike Kameli Painting & Decorating ("Defendant"), erroneously sued as Mike Komeli Painting & Decorating.

On June 9, 2026, Defendant filed the instant motion for protective order.

On July 6, 2026, Plaintiff filed an opposition.

On July 13, 2026, Defendant filed a reply.

II. LEGAL STANDARD

When requests for admission, interrogatories, or an inspection, copying, testing, or sampling of documents, tangible things, places, or electronically stored information have been made, propounded, or demanded, the responding party may promptly move for a protective order. (Code of Civ. Proc., §§ 2033.080, 2031.060, 2030.090.) This motion for a protective order shall be accompanied by a meet and confer declaration under section 2016.040. (Code of Civ. Proc., §§ 2033.080, subd. (a), 2031.060, subd. (a), 2030.090, subd. (a).)

The court, for good cause shown, may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. (Code of Civ. Proc., §§ 2033.080, subd. (b), 2031.060, subd. (b), 2030.090, subd. (b).)

III. DISCUSSION

On March 13, 2026, Plaintiff served initial written discovery requests, to which Defendant served answers on April 14, 2026. (Waldberg Decl., ¶ 6; Exh. E.) The next day, on April 15, 2026, Plaintiff served Defendant with a meet and confer letter via email. (Waldberg Decl., ¶ 7; Exh. F.) In an attempt to resolve the concerns raised in Plaintiff's email, Defendant served amended responses on April 30, 2026. (Waldberg Decl., ¶ 8.) The same day, April 30, 2026, Plaintiff served another meet and confer letter via email. (Waldberg Decl., ¶ 8; Exh. G.) Defendant subsequently served second amended responses on May 13, 2026, and third amended responses on June 5, 2026. (Waldberg Decl., ¶¶ 9, 10; Exhs. H, I.)

On May 1, 2026, Plaintiff served Defendant with a second set of written discovery, and third set of written discovery on May 19, 2026. (Waldberg Decl., ¶¶ 12, 13; Exhs. K, L.)

On June 2, 2026, Defendant's counsel sent a meet and confer letter to Plaintiff's counsel via email regarding the instant motion, stating counsel would be happy to set up a call to further discuss. (Waldberg Decl., ¶ 15; Exh. N.) Subsequently, Defendant and Plaintiff engaged in email correspondence regarding the discovery requests and instant motion. (Waldberg Decl., ¶ 15; Exh. N.) Parties have not had any discussions in person or via video or phone.

Section 2016.040 requires parties to meet and confer in person, by telephone, or by videoconference. (CCP § 2016.040(a), emphasis added.) Accordingly, email correspondences do not satisfy the statutory meet and confer requirement. The Court uses its discretion to continue the hearing on the instant motion and orders opposing parties to meet and confer, either in person, by telephone, or by video conferencing, and to file a declaration regarding the same. (See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355-356 [holding that trial courts are not required to ignore defects in the statutory meet and confer process and retains discretion to order counsel to meaningfully discuss the pleadings]) Based on the foregoing, hearing on the instant motion for protective order is continued August 10, 2027 at 8:30 a.m. Counsel for opposing parties are ordered to meaningfully meet and confer, either in person, via phone, or via video conferencing, and to file a declaration regarding the same five days prior to the next hearing.

Moving party to give notice.

Dated: July 20, 2026 _____

Hon. Karen Moskowitz

Judge of the Superior Court